

## MUTUAL NON-DISCLOSURE AND NON-CIRCUMVENTION AGREEMENT

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PARTY A (DISCLOSING & RECEIVING PARTY):

Split Second Royalties LLC, a Wyoming  
Limited Liability Company  
Address: 30 N Gould St STE R  
Sheridan, WY 82801  
Email: [contact@splitsecondroyalties.com](mailto:contact@splitsecondroyalties.com)

PARTY B (DISCLOSING & RECEIVING PARTY):

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EFFECTIVE DATE:

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This Mutual Non-Disclosure and Non-Circumvention Agreement (the "Agreement") is entered into as of the Effective Date set forth above, by and between Party A and Party B (each a "Party" and collectively the "Parties").

**PURPOSE:** The Parties wish to explore and evaluate a potential business, operational, technical, and strategic relationship involving proprietary software licensing, database integrations, automated royalty administration, secure transactional routing, and associated business collaborations (the "Purpose"). In connection with this Purpose, each Party may disclose highly valuable, proprietary, and confidential business, technical, or financial information to the other Party.

### **SECTION 1: CONFIDENTIAL INFORMATION**

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**1.1 Definition.** "Confidential Information" means any proprietary, non-public, or commercially sensitive information disclosed by one Party (the "Disclosing Party") to the other Party (the "Receiving Party"), whether orally, visually, electronically, digitally, or in writing. Confidential Information includes, without limitation:

- (a) Business plans, financial models, valuation projections, capitalization details, strategic round offering terms, marketing strategies, and the existence and content of discussions among the Parties;
- (b) Software, source code, database structures, proprietary data parsers, technical API integration specifications, repositories, non-custodial wallet configurations, and on-chain transactional primitives and settlement paths;
- (c) Operational reports, asset schedules, lease or registry details, commercial contracts, and business blueprints;
- (d) Underwriting metrics, automated audit logic, reconciliation procedures, and proprietary business methods; and
- (e) Personnel profiles, customer lists, vendor agreements, strategic partner relationships, and contacts with accredited supporters or project supporters.

**1.2 Exclusions.** Confidential Information does not include information that: (a) was rightfully known to the Receiving Party without restriction prior to disclosure; (b) is or becomes publicly available through no fault or breach of the Receiving Party; (c) is rightfully received from a third party without a duty of confidentiality; or (d) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

## **SECTION 2: USE AND PROTECTION OF CONFIDENTIAL INFORMATION**

**2.1 Strictly Confidential.** The Receiving Party shall maintain Confidential Information in strict confidence and protect it using at least the same degree of care it uses for its own highly confidential information, but no less than a reasonable degree of care. The Receiving Party shall use the Confidential Information solely to evaluate and execute the Purpose.

**2.2 Permitted Disclosures.** Access to Confidential Information is strictly restricted to employees, officers, directors, contractors, advisors, or representatives with a direct "need to know" who are bound by written confidentiality obligations at least as protective as those contained in this Agreement. No disclosure to unauthorized third parties is permitted without prior written consent from the Disclosing Party.

**2.3 No Reverse Engineering.** The Receiving Party shall not analyze, decompile, disassemble, reverse engineer, reproduce, replicate, copy, or develop substantially similar systems, software, databases, or workflows using the Disclosing Party's Confidential Information.

**2.4 Record keeping.** The Receiving Party shall maintain accurate, written records of all individuals to whom the Disclosing Party's Confidential Information has been disclosed and shall provide such records upon request.

**2.5 Publicity Restrictions.** Neither Party shall issue any public statement, press release, marketing materials, or reference the other Party or the existence of these discussions in any medium without the prior written consent of the other Party.

**2.6 Compelled Disclosure.** If required by law, regulation, or legal process to disclose any Confidential Information, the Receiving Party shall, to the extent legally permitted, provide the Disclosing Party with prompt written notice and reasonable cooperation, at the Disclosing Party's expense, to enable the Disclosing Party to seek a protective order or other appropriate remedy.

## **SECTION 3: TECHNICAL ACCESS AND SYSTEMS**

**3.1 Proprietary Ownership.** Any software repositories, APIs, development environments, non-custodial wallet infrastructures, testing portals, databases, or documentation shared between the Parties shall remain strictly confidential and proprietary. Access to these systems does not grant any ownership, licensing, patent, or intellectual property rights unless explicitly agreed to in a separate, written agreement signed by authorized representatives of both Parties.

## **SECTION 4: NON-CIRCUMVENTION COVENANTS**

**4.1 Direct Dealings Ban.** During the term of this Agreement and for a period of two (2) years following its termination, neither Party shall, directly or indirectly, circumvent or attempt to circumvent the other Party in any business transaction or opportunity disclosed under this Agreement, nor contact, solicit, or enter into direct business relationships with any disclosed suppliers, operational partners, customers, or strategic supporters of the other Party without prior written consent.

**4.2 Pre-Existing Relationships.** The non-circumvention covenants of Section 4.1 shall not apply to any specific partner or customer relationship that a Party can demonstrate, through written or electronic records existing prior to the Effective Date, was already active and established with that Party prior to being introduced or disclosed under this Agreement.

## **SECTION 5: INTELLECTUAL PROPERTY RIGHTS**

**5.1 Reservation of Rights.** Each Party retains sole and exclusive ownership of its pre-existing technology, software code, workflows, business methods, databases, trademarks, and patent-pending frameworks. Nothing in this Agreement shall be construed to grant any implied licenses, joint ownership rights, or shared intellectual property interests.

**SECTION 6: RETURN OR DESTRUCTION OF MATERIALS**

**6.1 Certification.** Within ten (10) days of receiving a written request from the Disclosing Party, the Receiving Party shall promptly return or destroy all copies, exports, or technical materials containing Confidential Information and certify such destruction in writing to the Disclosing Party. Routine automated system backups are exempt from immediate destruction but shall remain fully bound by the confidentiality terms of this Agreement until purged.

**SECTION 7: TERM AND SURVIVAL**

**7.1 Effective Term.** This Agreement shall remain in effect for two (2) years from the Effective Date, or until superseded by a definitive agreement between the Parties. All obligations of confidentiality and non-circumvention set forth herein shall survive termination for an additional period of two (2) years, or with respect to trade secrets, for so long as the underlying information remains a trade secret under applicable law.

**SECTION 8: MISCELLANEOUS PROVISIONS**

**8.1 No Obligation.** Nothing in this Agreement obligates either Party to proceed with any commercial transaction, capitalization round, or joint venture.

**8.2 Injunctive Relief.** The Parties agree that any breach of this Agreement may cause irreparable harm for which monetary damages would be inadequate. Accordingly, the Disclosing Party shall be entitled to seek immediate injunctive relief and specific performance in any court of competent jurisdiction without the necessity of posting a bond.

**8.3 Governing Law & Jurisdiction.** This Agreement shall be governed by, and construed in accordance with, the laws of the State of Wyoming, without regard to its conflict of laws principles. Any legal actions or proceedings arising out of this Agreement shall be brought exclusively in the state or federal courts located in Wyoming.

**8.4 Severability & Entire Agreement.** If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall remain in full force. This Agreement constitutes the entire understanding between the Parties regarding its subject matter and supersedes all prior agreements, oral or written.

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**PARTY A: SPLIT SECOND ROYALTIES LLC**

By: \_\_\_\_\_

Name: David Goodman

Title: CEO / President

Date: \_\_\_\_\_

**PARTY B:**

By: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_